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**U.S. District Court - District of Colorado**  
**District of Colorado (Denver)**  
**CIVIL DOCKET FOR CASE #: 1:11-cv-00767-RPM**

Frey v. Medtronic Sofamor Danek USA, Inc.  
Assigned to: Judge Richard P. Matsch  
Cause: 28:1332 Diversity-Breach of Contract

Date Filed: 03/25/2011  
Date Terminated: 08/11/2014  
Jury Demand: Both  
Nature of Suit: 190 Contract: Other  
Jurisdiction: Diversity

**Plaintiff**

**George Frey**  
*Dr., M.D., a Colorado citizen*

represented by **David Benjamin Kellis**  
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V.

**Defendant**

**Sofamor Danek Holdings, Inc.**  
*a Delaware corporation*  
*TERMINATED: 03/12/2012*

represented by **Chad Allen Hanson**  
Intellectual Property Litigation  
710 Medtronic Parkway  
#LC300  
Minneapolis, MN 55432-5604  
763-505-2030  
*TERMINATED: 03/28/2012*

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**Defendant**

**Medtronic Sofamor Danek USA, Inc.**  
*an Indiana corporation*

represented by **Benjamin A. Yaghoubian**  
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*TERMINATED: 03/28/2012*

**Conor Fitzgerald Farley**  
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**Erin Cooke Kolter**  
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**Defendant**

**Warsaw Orthopedic, Inc.**

represented by **Benjamin A. Yaghoubian**

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*ATTORNEY TO BE NOTICED*

| Date Filed | #                  | Docket Text                                                                                                                                                                                                                                                                                         |
|------------|--------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 03/25/2011 | <a href="#">1</a>  | COMPLAINT and Jury Demand against Medtronic Sofamor Danek USA, Inc. and Sofamor Danek Holdings, Inc. (Filing fee \$ 350, Receipt Number 36336) Summons Issued, filed by George Frey. (Attachments: # <a href="#">1</a> Civil Cover Sheet, # <a href="#">2</a> Receipt)(lyg, ) (Entered: 03/28/2011) |
| 04/20/2011 | <a href="#">2</a>  | NOTICE of Waiver of Service by Plaintiff George Frey (Attachments: # <a href="#">1</a> Exhibit A to Notice of Waiver of Service)(Walsworth, Ian) (Entered: 04/20/2011)                                                                                                                              |
| 04/27/2011 | <a href="#">3</a>  | NOTICE of Entry of Appearance by Stanley M. Gibson on behalf of George Frey (Gibson, Stanley) (Entered: 04/27/2011)                                                                                                                                                                                 |
| 05/27/2011 | <a href="#">4</a>  | ANSWER to <a href="#">1</a> Complaint by Medtronic Sofamor Danek USA, Inc., Sofamor Danek Holdings, Inc..(Dauchot, Luke) (Entered: 05/27/2011)                                                                                                                                                      |
| 05/27/2011 | <a href="#">5</a>  | CORPORATE DISCLOSURE STATEMENT by Defendants Medtronic Sofamor Danek USA, Inc., Sofamor Danek Holdings, Inc... (Dauchot, Luke) (Entered: 05/27/2011)                                                                                                                                                |
| 05/27/2011 | <a href="#">6</a>  | NOTICE of Entry of Appearance by Luke Lucien Dauchot on behalf of Medtronic Sofamor Danek USA, Inc., Sofamor Danek Holdings, Inc. (Dauchot, Luke) (Entered: 05/27/2011)                                                                                                                             |
| 05/27/2011 | <a href="#">7</a>  | NOTICE of Entry of Appearance by Nimalka Ratnavali Wickramasekera on behalf of Medtronic Sofamor Danek USA, Inc., Sofamor Danek Holdings, Inc. (Wickramasekera, Nimalka) (Entered: 05/27/2011)                                                                                                      |
| 05/27/2011 | <a href="#">8</a>  | NOTICE of Entry of Appearance by Erin Cooke Kolter on behalf of Medtronic Sofamor Danek USA, Inc., Sofamor Danek Holdings, Inc. (Kolter, Erin) (Entered: 05/27/2011)                                                                                                                                |
| 05/27/2011 | <a href="#">9</a>  | NOTICE of Entry of Appearance by James Edward Hartley on behalf of All Defendants (Hartley, James) (Entered: 05/27/2011)                                                                                                                                                                            |
| 05/27/2011 | <a href="#">10</a> | NOTICE of Entry of Appearance by Conor Fitzgerald Farley on behalf of All Defendants (Farley, Conor) (Entered: 05/27/2011)                                                                                                                                                                          |
| 05/31/2011 | <a href="#">11</a> | ORDER Setting Scheduling Conference for 7/7/2011 at 10:30 AM in Conference Room and proposed order (original only) on paper, shall be submitted directly to chambers by 4:00 p.m. on June 30, 2011, by Judge Richard P. Matsch on 5/31/2011. (rpmcd ) (Entered: 05/31/2011)                         |
| 07/07/2011 | <a href="#">12</a> | Minute Entry - Courtroom Minutes for Scheduling Conference held on 7/7/2011 before Judge Richard P. Matsch. ORDERED: Revised proposed scheduling due April 8, 2011. (FTR: K. Terasaki) (rpmcd) (Entered: 07/07/2011)                                                                                |
| 07/07/2011 | <a href="#">13</a> | Minute Entry - Amended Courtroom Minutes re <a href="#">12</a> 7/7/2011 Scheduling Conference. ORDERED: Revised proposed scheduling due August 8, 2011.. (FTR: K. Terasaki) (rpmcd) (Entered: 07/07/2011)                                                                                           |
| 08/24/2011 | <a href="#">14</a> | Joint STATUS REPORT by Plaintiff George Frey. (Walsworth, Ian) (Entered: 08/24/2011)                                                                                                                                                                                                                |
| 08/25/2011 | <a href="#">15</a> | SCHEDULING ORDER: Discovery due by 3/16/2012. Dispositive Motions due by 6/1/2012. Signed by Judge Richard P. Matsch on 8/25/2011. (rpmcd) (Entered: 08/25/2011)                                                                                                                                    |

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|------------|--------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|            |                    | 08/25/2011)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 12/14/2011 | <a href="#">16</a> | Joint MOTION for Protective Order by Plaintiff George Frey. (Attachments: # <a href="#">1</a> Proposed Order (PDF Only) Proposed Protective Order)(Walsworth, Ian) (Entered: 12/14/2011)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 12/15/2011 | <a href="#">17</a> | PROTECTIVE ORDER re <a href="#">16</a> , by Judge Richard P. Matsch on 12/15/2011. (rpmcd ) (Entered: 12/15/2011)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 01/26/2012 | <a href="#">18</a> | MOTION to Amend/Correct/Modify <a href="#">15</a> Scheduling Order by Plaintiff George Frey. (Attachments: # <a href="#">1</a> Proposed Order (PDF Only) Proposed Order)(Walsworth, Ian) (Entered: 01/26/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 02/03/2012 | <a href="#">19</a> | RESPONSE to <a href="#">18</a> MOTION to Amend/Correct/Modify <a href="#">15</a> Scheduling Order filed by Defendants Medtronic Sofamor Danek USA, Inc., Sofamor Danek Holdings, Inc.. (Wickramasekera, Nimalka) (Entered: 02/03/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 02/06/2012 | <a href="#">20</a> | Minute ORDER Setting Hearing on <a href="#">18</a> MOTION to Amend <a href="#">15</a> Scheduling Order for 2/9/2012 at 10:00 AM in Courtroom A, by Judge Richard P. Matsch on 2/6/2012. (rpmcd ) (Entered: 02/06/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 02/09/2012 | <a href="#">21</a> | Courtroom Minutes for Motion Hearing held on 2/9/2012 before Judge Richard P. Matsch. ORDERED: Defendants' Requests for a Status Conference <a href="#">18</a> is granted by this setting. Motion to Amend <a href="#">15</a> Scheduling Order <a href="#">18</a> , is granted and counsel shall submit an agreed revised scheduling order by March 12, 2012.(FTR: K. Terasaki) (rpmcd ) (Entered: 02/09/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 02/17/2012 | <a href="#">22</a> | <p>TRANSCRIPT of Motion Hearing held on February 9, 2012 before Judge Matsch. Pages: 1-39. Prepared by: Federal Reporting Service, Inc.</p> <p><b>NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at <a href="http://www.cod.uscourts.gov">www.cod.uscourts.gov</a>.</b></p> <p>Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 5/21/2012. (Federal Reporting Service, Inc., ) (Entered: 02/17/2012)</p> |
| 03/07/2012 | <a href="#">23</a> | MOTION to Substitute Party - <i>Change the Name of Defendant Sofamor Danek Holdings, Inc.</i> by Plaintiff George Frey. (Attachments: # <a href="#">1</a> Proposed Order (PDF Only))(Walsworth, Ian) (Entered: 03/07/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 03/09/2012 | <a href="#">24</a> | RESPONSE to <a href="#">23</a> MOTION to Substitute Party - <i>Change the Name of Defendant Sofamor Danek Holdings, Inc.</i> filed by Defendants Medtronic Sofamor Danek USA, Inc., Sofamor Danek Holdings, Inc.. (Attachments: # <a href="#">1</a> Exhibit 1 - Secretary of State webpages)(Kolter, Erin) (Entered: 03/09/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 03/12/2012 | <a href="#">25</a> | ORDER Granting <a href="#">23</a> Motion to Substitute Party. The allegations of the plaintiff in the complaint filed March 25, 2011, against the then named defendant Sofamor Danek Holdings, Inc., are recognized as allegations against Warsaw Orthopedic, Inc., and the caption of this civil action will be changed to substitute Warsaw Orthopedic, Inc., for Sofamor Danek Holdings, Inc. Warsaw Orthopedic, Inc. added. Sofamor Danek Holdings, Inc. (a Delaware corporation) terminated, by Judge Richard P. Matsch on 3/12/2012. (rpmcd ) (Entered: 03/12/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                  |

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| 03/14/2012 | <a href="#">26</a> | Revised <a href="#">15</a> SCHEDULING ORDER per <a href="#">21</a> . Discovery due by 6/11/2012. Dispositive Motions due by 6/22/2012. Signed by Judge Richard P. Matsch on 3/14/2012. (rpmcd ) (Entered: 03/14/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 03/27/2012 | <a href="#">27</a> | Unopposed MOTION to Withdraw as Attorney <i>Withdrawal of Chad Allen Hanson as Counsel of Record</i> by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc.. (Attachments: # <a href="#">1</a> Proposed Order (PDF Only))(Farley, Conor) (Entered: 03/27/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 03/28/2012 | <a href="#">28</a> | ORDER Granting <a href="#">27</a> Motion to Withdraw as Attorney. Attorney Chad Allen Hanson is withdrawn and ECF notice is terminated, by Judge Richard P. Matsch on 3/28/2012. Text Only Entry(rpmcd ) (Entered: 03/28/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 05/04/2012 | <a href="#">29</a> | MOTION for Leave to Restrict Document by Plaintiff George Frey. (Walsworth, Ian) (Entered: 05/04/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 05/04/2012 | <a href="#">30</a> | RESTRICTED DOCUMENT - Level 1: by Plaintiff George Frey.. (Attachments: # <a href="#">1</a> Exhibit, # <a href="#">2</a> Exhibit, # <a href="#">3</a> Exhibit, # <a href="#">4</a> Exhibit, # <a href="#">5</a> Exhibit, # <a href="#">6</a> Exhibit, # <a href="#">7</a> Exhibit, # <a href="#">8</a> Exhibit, # <a href="#">9</a> Exhibit)(Walsworth, Ian) (Entered: 05/04/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 05/04/2012 | <a href="#">31</a> | "Withdrawn" Plaintiff's Motion to Compel Defendants to Produce Rule 30(b)(6) Deposition Witness for Continued Deposition Testimony re <a href="#">30</a> (Public Entry) (Text Only Entry), by Plaintiff George Frey. (rpmcd) Modified Re <a href="#">35</a> on 6/12/2012 (rpmcd ). (Entered: 05/07/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 05/07/2012 | <a href="#">32</a> | ORDER Granting <a href="#">29</a> Motion for Leave to Restrict re: <a href="#">30</a> , by Judge Richard P. Matsch on 5/7/2012.(rpmcd) (Entered: 05/07/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 05/25/2012 | <a href="#">33</a> | Unopposed MOTION to Stay re <a href="#">30</a> Restricted Document - Level 1 - <i>Hold in Abeyance Motion to Compel Pending Completion of Depositions on June 4-7, 2012</i> by Plaintiff George Frey. (Attachments: # <a href="#">1</a> Proposed Order (PDF Only))(Walsworth, Ian) (Entered: 05/25/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 05/25/2012 | <a href="#">34</a> | ORDER Ggranting <a href="#">33</a> Motion to to Hold in Abeyance <a href="#">30</a> / <a href="#">31</a> , PendingCompletion of Depositions on June 4-7, 2012. Court will hold further briefing or a ruling on the Motion to Compel [Doc. No. 30] in abeyance until June 11, 2011, when Dr. Frey will provide the Court with a Status Report indicating whether the Motion is still necessary in light of the depositions of Mr. Martin, Ms. Jones and Mr. Bethell, by Judge Richard P. Matsch on 5/25/2012.(rpmcd) (Entered: 05/25/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 06/11/2012 | <a href="#">35</a> | STATUS REPORT by Plaintiff George Frey. (Walsworth, Ian) (Entered: 06/11/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 06/18/2012 | <a href="#">36</a> | MOTION for Leave to Restrict Document by Plaintiff George Frey. (Walsworth, Ian) (Entered: 06/18/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 06/18/2012 | <a href="#">37</a> | RESTRICTED DOCUMENT - Level 1: by Plaintiff George Frey.. (Walsworth, Ian) (Entered: 06/18/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 06/18/2012 | <a href="#">38</a> | RESTRICTED DOCUMENT - Level 1: by Plaintiff George Frey.. (Attachments: # <a href="#">1</a> Exhibit 1, # <a href="#">2</a> Exhibit 2, # <a href="#">3</a> Exhibit 3 Part I, # <a href="#">4</a> Exhibit 3 Part II, # <a href="#">5</a> Exhibit 4, # <a href="#">6</a> Exhibit 5, # <a href="#">7</a> Exhibit 6, # <a href="#">8</a> Exhibit 7, # <a href="#">9</a> Exhibit 8, # <a href="#">10</a> Exhibit 9, # <a href="#">11</a> Exhibit 10, # <a href="#">12</a> Exhibit 11, # <a href="#">13</a> Exhibit 12, # <a href="#">14</a> Exhibit 13, # <a href="#">15</a> Exhibit 14, # <a href="#">16</a> Exhibit 15, # <a href="#">17</a> Exhibit 16, # <a href="#">18</a> Exhibit 17, # <a href="#">19</a> Exhibit 18, # <a href="#">20</a> Exhibit 19, # <a href="#">21</a> Exhibit 20, # <a href="#">22</a> Exhibit 21, # <a href="#">23</a> Exhibit 22, # <a href="#">24</a> Exhibit 23, # <a href="#">25</a> Exhibit 24, # <a href="#">26</a> Exhibit 25, # <a href="#">27</a> Exhibit 26)(Walsworth, Ian) (Entered: 06/18/2012) |
| 06/18/2012 | <a href="#">39</a> | DECLARATION of <i>Dr. George Frey, M.D.</i> regarding Restricted Document - Level 1 <a href="#">37</a> by Plaintiff George Frey. (Walsworth, Ian) (Entered: 06/18/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |



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|------------|--------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 06/18/2012 | <a href="#">40</a> | Plaintiff Dr. George Frey, M.D.'s Motion and Incorporated Memorandum of Law in Support of Partial Summary Judgment Regarding Net Sales by Plaintiff George Frey. (Walsworth, Ian) (Public and Text Only Entry) re <a href="#">37</a> . (rpmcd) (Entered: 06/19/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 06/18/2012 | <a href="#">41</a> | DECLARATION and Exhibits in Support of <a href="#">37</a> and <a href="#">40</a> by Plaintiff George Frey. ) (Walsworth, Ian) (Public and Text only Entry) re <a href="#">38</a> . (rpmcd) (Entered: 06/19/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 06/19/2012 | <a href="#">42</a> | ORDER Granting <a href="#">36</a> Motion for Leave to Restrict only as to the exhibits attached re <a href="#">38</a> , by Judge Richard P. Matsch on 6/19/2012.(rpmcd ) (Entered: 06/19/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 06/22/2012 | <a href="#">43</a> | MOTION for Leave to Restrict Document by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc.. (Attachments: # <a href="#">1</a> Proposed Order (PDF Only)) (Wickramasekera, Nimalka) (Entered: 06/22/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 06/22/2012 | <a href="#">44</a> | RESTRICTED DOCUMENT - Level 1: by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc... (Wickramasekera, Nimalka) (Entered: 06/22/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 06/22/2012 | <a href="#">45</a> | RESTRICTED DOCUMENT - Level 1: by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc... (Attachments: # <a href="#">1</a> Exhibit 1, # <a href="#">2</a> Exhibit 2, # <a href="#">3</a> Exhibit 3, # <a href="#">4</a> Exhibit 4, # <a href="#">5</a> Exhibit 5, # <a href="#">6</a> Exhibit 6, # <a href="#">7</a> Exhibit 7, # <a href="#">8</a> Exhibit 8, # <a href="#">9</a> Exhibit 9, # <a href="#">10</a> Exhibit 10, # <a href="#">11</a> Exhibit 11, # <a href="#">12</a> Exhibit 12, # <a href="#">13</a> Exhibit 13, # <a href="#">14</a> Exhibit 14, # <a href="#">15</a> Exhibit 15, # <a href="#">16</a> Exhibit 16, # <a href="#">17</a> Exhibit 17, # <a href="#">18</a> Exhibit 18, # <a href="#">19</a> Exhibit 19, # <a href="#">20</a> Exhibit 20, # <a href="#">21</a> Exhibit 21, # <a href="#">22</a> Exhibit 22, # <a href="#">23</a> Exhibit 23, # <a href="#">24</a> Exhibit 24, # <a href="#">25</a> Exhibit 25, # <a href="#">26</a> Exhibit 26, # <a href="#">27</a> Exhibit 27, # <a href="#">28</a> Exhibit 28, # <a href="#">29</a> Exhibit 29, # <a href="#">30</a> Exhibit 30, # <a href="#">31</a> Exhibit 31, # <a href="#">32</a> Exhibit 32)(Wickramasekera, Nimalka) (Entered: 06/22/2012) |
| 06/22/2012 | <a href="#">46</a> | Warsaw Orthopedic, Inc. and Medtronic Sofamor Danek Usa, Inc.'s Motion and Incorporated Memorandum of Law in Support of Partial Summary Judgment on Capstone by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc. (Wickramasekera, Nimalka ). (Public and Text Only Entry re <a href="#">44</a> ) (rpmcd) (Entered: 06/25/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 06/22/2012 | <a href="#">47</a> | Declaration of Erin C. Kolter in Support of Warsaw Orthopedic, Inc. and Medtronic Sofamor Danek Usa, Inc.'s Motion and Incorporated Memorandum of Law in Support of Partial Summary Judgment on Capstone, re <a href="#">45</a> and <a href="#">46</a> by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc. )(Wickramasekera, Nimalka) (Public and Text Only Entry) (rpmcd ) Modified on 6/26/2012 (rpmcd). (Entered: 06/25/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 06/26/2012 | <a href="#">48</a> | ORDER On <a href="#">43</a> Motion for Leave to Restrict re <a href="#">44</a> and <a href="#">45</a> Restricted Document - Level 1 and defendant file a redacted motion and memorandum of law in support of the partial motion for summary judgment by July 3, 2012, by Judge Richard P. Matsch on 6/26/2012.(rpmcd) (Entered: 06/26/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 07/02/2012 | <a href="#">49</a> | MOTION for Partial Summary Judgment <i>and Incorporated Memorandum of Law on Capstone [REDACTED VERSION of Docket 44]</i> by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc.. (Wickramasekera, Nimalka) (Entered: 07/02/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 07/12/2012 | <a href="#">50</a> | MOTION for Leave to Restrict Document by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc.. (Attachments: # <a href="#">1</a> Proposed Order (PDF Only)) (Wickramasekera, Nimalka) (Entered: 07/12/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 07/12/2012 | <a href="#">51</a> | UNRESTRICTED DOCUMENT - OPPOSITION TO PLAINTIFF'S MOTION AND INCORPORATED MEMORANDUM OF LAW IN SUPPORT OF PARTIAL SUMMARY JUDGMENT REGARDING NET SALES by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc. (Wickramasekera, Nimalka)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |



|            |                    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
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|            |                    | Modified on 7/13/2012 to unrestrict document pursuant to <a href="#">54</a> (sgrim). (Entered: 07/12/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 07/12/2012 | <a href="#">52</a> | RESTRICTED DOCUMENT - Level 1: by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc... (Attachments: # <a href="#">1</a> Exhibit A, # <a href="#">2</a> Exhibit B, # <a href="#">3</a> Exhibit C, # <a href="#">4</a> Exhibit D, # <a href="#">5</a> Exhibit E, # <a href="#">6</a> Exhibit F, # <a href="#">7</a> Exhibit G, # <a href="#">8</a> Exhibit H, # <a href="#">9</a> Exhibit I) (Wickramasekera, Nimalka) (Entered: 07/12/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 07/12/2012 | <a href="#">53</a> | RESTRICTED DOCUMENT - Level 1: by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc... (Attachments: # <a href="#">1</a> Exhibit 1, # <a href="#">2</a> Exhibit 2, # <a href="#">3</a> Exhibit 3) (Wickramasekera, Nimalka) (Entered: 07/12/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 07/12/2012 | 55                 | DECLARATION re: <a href="#">51</a> by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc. (Public Entry for Restricted Document <a href="#">52</a> filed on 7/12/12) Text Only Entry. (sgrim) (Entered: 07/13/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 07/12/2012 | 56                 | DECLARATION re: <a href="#">51</a> by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc. (Public Entry for Restricted Document <a href="#">53</a> filed on 7/12/12) Text Only Entry (sgrim) (Entered: 07/13/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 07/13/2012 | <a href="#">54</a> | ORDER granting <a href="#">50</a> Motion for Leave to Restrict. The Motion is denied as moot <a href="#">51</a> by Judge Richard P. Matsch on 07/13/12.(jjhsl, ) Modified on 7/13/2012 to correct linkage (jjhsl, ). (Entered: 07/13/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 07/16/2012 | <a href="#">57</a> | MOTION for Leave to Restrict Document by Plaintiff George Frey. (Walsworth, Ian) (Entered: 07/16/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 07/16/2012 | <a href="#">58</a> | RESTRICTED DOCUMENT - Level 1: by Plaintiff George Frey.. (Walsworth, Ian) (Entered: 07/16/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 07/16/2012 | <a href="#">59</a> | DECLARATION of <i>Dr. George Frey, M.D.</i> regarding Restricted Document - Level 1 <a href="#">58</a> by Plaintiff George Frey. (Walsworth, Ian) (Entered: 07/16/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 07/16/2012 | <a href="#">60</a> | RESTRICTED DOCUMENT - Level 1: by Plaintiff George Frey.. (Walsworth, Ian) (Entered: 07/16/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 07/16/2012 | 62                 | Plaintiff George Frey, MD's RESPONSE in Opposition to <a href="#">49</a> MOTION for Partial Summary Judgment and Incorporated Memorandum of Law on Captstone (Public and Text Only Entry Re <a href="#">58</a> . (rpmcd) (Entered: 07/17/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 07/16/2012 | 63                 | DECLARATION of Ian R. Walsworth re 40 by Plaintiff George Frey, (Public and Text Only Entry re <a href="#">60</a> . (rpmcd ) (Entered: 07/17/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 07/17/2012 | <a href="#">61</a> | RESTRICTED DOCUMENT - Level 1: by Plaintiff George Frey.. (Attachments: # <a href="#">1</a> Restricted Attachment Ex. 1, # <a href="#">2</a> Restricted Attachment Ex. 2, # <a href="#">3</a> Restricted Attachment Ex. 3, # <a href="#">4</a> Restricted Attachment Ex. 4, # <a href="#">5</a> Restricted Attachment Ex. 5, # <a href="#">6</a> Restricted Attachment Ex. 6, # <a href="#">7</a> Restricted Attachment Ex. 7, # <a href="#">8</a> Restricted Attachment Ex. 8, # <a href="#">9</a> Restricted Attachment Ex. 9, # <a href="#">10</a> Restricted Attachment Ex. 10, # <a href="#">11</a> Restricted Attachment Ex. 11, # <a href="#">12</a> Restricted Attachment Ex. 12, # <a href="#">13</a> Restricted Attachment Ex. 13, # <a href="#">14</a> Restricted Attachment Ex. 14, # <a href="#">15</a> Restricted Attachment Ex. 15, # <a href="#">16</a> Restricted Attachment Ex. 16, # <a href="#">17</a> Restricted Attachment Ex. 17, # <a href="#">18</a> Restricted Attachment Ex. 18, # <a href="#">19</a> Restricted Attachment Ex. 19, # <a href="#">20</a> Restricted Attachment Ex. 20, # <a href="#">21</a> Restricted Attachment Ex. 21, # <a href="#">22</a> Restricted Attachment Ex. 22, # <a href="#">23</a> Restricted Attachment Ex. 23, # <a href="#">24</a> Restricted Attachment Ex. 24, # <a href="#">25</a> Restricted Attachment Ex. 25, # <a href="#">26</a> Restricted Attachment Ex. 26, # <a href="#">27</a> Restricted Attachment Ex. 27, # <a href="#">28</a> Restricted Attachment Ex. 28, # <a href="#">29</a> Restricted Attachment Ex. 29, # <a href="#">30</a> Restricted Attachment Ex. 30, # <a href="#">31</a> Restricted Attachment Ex. 31, # <a href="#">32</a> Restricted Attachment Ex. 32, # <a href="#">33</a> Restricted Attachment Ex. 33, # <a href="#">34</a> Restricted Attachment Ex. 34, # <a href="#">35</a> Restricted Attachment Ex. 35, # <a href="#">36</a> Restricted Attachment Ex. 36, # <a href="#">37</a> |

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|            |                    | Restricted Attachment Ex. 37, # <a href="#">38</a> Restricted Attachment Ex. 38, # <a href="#">39</a> Restricted Attachment Ex. 39 Part 1, # <a href="#">40</a> Restricted Attachment Ex. 39 Part 2, # <a href="#">41</a> Restricted Attachment Ex. 40, # <a href="#">42</a> Restricted Attachment Ex. 41, # <a href="#">43</a> Restricted Attachment Ex. 42, # <a href="#">44</a> Restricted Attachment Ex. 43, # <a href="#">45</a> Restricted Attachment Ex. 44, # <a href="#">46</a> Restricted Attachment Ex. 45, # <a href="#">47</a> Restricted Attachment Ex. 46, # <a href="#">48</a> Restricted Attachment Ex. 47, # <a href="#">49</a> Restricted Attachment Ex. 48, # <a href="#">50</a> Restricted Attachment Ex. 49, # <a href="#">51</a> Restricted Attachment Ex. 50, # <a href="#">52</a> Restricted Attachment Ex. 51, # <a href="#">53</a> Restricted Attachment Ex. 52, # <a href="#">54</a> Restricted Attachment Ex. 53, # <a href="#">55</a> Restricted Attachment Ex. 54, # <a href="#">56</a> Restricted Attachment Ex. 55, # <a href="#">57</a> Restricted Attachment Ex. 56, # <a href="#">58</a> Restricted Attachment Ex. 57, # <a href="#">59</a> Restricted Attachment Ex. 58, # <a href="#">60</a> Restricted Attachment Ex. 59, # <a href="#">61</a> Restricted Attachment Ex. 60, # <a href="#">62</a> Restricted Attachment Ex. 61, # <a href="#">63</a> Restricted Attachment Ex. 62, # <a href="#">64</a> Restricted Attachment Ex. 63, # <a href="#">65</a> Restricted Attachment Ex. 64, # <a href="#">66</a> Restricted Attachment Ex. 65, # <a href="#">67</a> Restricted Attachment Ex. 66, # <a href="#">68</a> Restricted Attachment Ex. 67, # <a href="#">69</a> Restricted Attachment Ex. 68, # <a href="#">70</a> Restricted Attachment Ex. 69)(Walsworth, Ian) (Entered: 07/17/2012) |
| 07/17/2012 | <a href="#">64</a> | Exhibits re 40 by Plaintiff George Frey. (Public and Text Only Entry re <a href="#">61</a> (rpmcd) (Entered: 07/17/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 07/17/2012 | <a href="#">65</a> | ORDER Granting <a href="#">57</a> Motion for Leave to Restrict <a href="#">61</a> Exhibits at Level 1 only, by Judge Richard P. Matsch on 7/17/2012.(rpmcd) (Entered: 07/17/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 07/24/2012 | <a href="#">66</a> | REPLY to Response to 40 MOTION for Partial Summary Judgment filed by Plaintiff George Frey. (Walsworth, Ian) (Entered: 07/24/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 07/24/2012 | <a href="#">67</a> | DECLARATION of <i>Ian R. Walsworth</i> regarding Reply to Response to Motion <a href="#">66</a> by Plaintiff George Frey. (Attachments: # <a href="#">1</a> Exhibit 1, # <a href="#">2</a> Exhibit 2)(Walsworth, Ian) (Entered: 07/24/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 08/02/2012 | <a href="#">68</a> | MOTION for Leave to Restrict Document by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc.. (Attachments: # <a href="#">1</a> Proposed Order (PDF Only)) (Wickramasekera, Nimalka) (Entered: 08/02/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 08/02/2012 | <a href="#">69</a> | RESTRICTED DOCUMENT - Level 1: by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc... (Wickramasekera, Nimalka) (Entered: 08/02/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 08/02/2012 | <a href="#">70</a> | RESTRICTED DOCUMENT - Level 1: by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc... (Attachments: # <a href="#">1</a> Exhibit 33, # <a href="#">2</a> Exhibit 34, # <a href="#">3</a> Exhibit 35, # <a href="#">4</a> Exhibit 36, # <a href="#">5</a> Exhibit 37, # <a href="#">6</a> Exhibit 38, # <a href="#">7</a> Exhibit 39, # <a href="#">8</a> Exhibit 40, # <a href="#">9</a> Exhibit 41, # <a href="#">10</a> Exhibit 42, # <a href="#">11</a> Exhibit 43, # <a href="#">12</a> Exhibit 44, # <a href="#">13</a> Exhibit 45, # <a href="#">14</a> Exhibit 46, # <a href="#">15</a> Exhibit 47, # <a href="#">16</a> Exhibit 48, # <a href="#">17</a> Exhibit 49, # <a href="#">18</a> Exhibit 50, # <a href="#">19</a> Exhibit 51, # <a href="#">20</a> Exhibit 52)(Wickramasekera, Nimalka) (Entered: 08/02/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 08/02/2012 | <a href="#">71</a> | Warsaw Orthopedic, Inc. and Medtronic Sofamor Danek Usa, Inc.'s Reply in Support of Their Motion for Partial Summary Judgment On Capstone re <a href="#">69</a> , <a href="#">44</a> / 46 , 62 and <a href="#">58</a> , filed by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc.,Public and Text only Entry (rpmcd) Modified on 8/3/2012 (rpmcd). (Entered: 08/03/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 08/02/2012 | <a href="#">72</a> | Declaration of Erin C. Kolter in Support of Warsaw Orthopedic, Inc. and Medtronic Sofamor Danek Usa, Inc.'s Reply in Support of Their Motion for Partial Summary Judgment on Capstone re <a href="#">70</a> , <a href="#">69</a> and 46 , (Wickramasekera, Nimalka), Public and Text Only Entry.(rpmcd) Modified on 8/3/2012 (rpmcd) . (Entered: 08/03/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 08/03/2012 | <a href="#">73</a> | ORDER Granting <a href="#">68</a> Motion for Leave to Restrict to Level 1 re <a href="#">69</a> and <a href="#">70</a> and a redacted reply will be filed for public access on or before August 10, 2012 re <a href="#">44</a> / 46 , by Judge                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |

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|            |                    | Richard P. Matsch on 8/3/2012.(rpmcd) Modified on 8/3/2012 (rpmcd). (Entered: 08/03/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 08/09/2012 | <a href="#">74</a> | REPLY <i>in Support of Motion for Partial Summary Judgment on Capstone [REDACTED VERSION of Docket 69]</i> by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc.. (Wickramasekera, Nimalka) (Entered: 08/09/2012)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 02/27/2013 | <a href="#">75</a> | Minute ORDER Setting Hearing on Motions 40 and 46 for 3/19/2013 at 02:00 PM in Courtroom A, by Judge Richard P. Matsch on 2/27/2013. (rpmcd) (Entered: 02/27/2013)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 03/13/2013 | <a href="#">76</a> | MOTION for Leave to Restrict Document by Plaintiff George Frey. (Walsworth, Ian) (Entered: 03/13/2013)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 03/13/2013 | <a href="#">77</a> | RESTRICTED DOCUMENT - Level 1: by Plaintiff George Frey.. (Walsworth, Ian) (Entered: 03/13/2013)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 03/13/2013 | <a href="#">78</a> | RESTRICTED DOCUMENT - Level 1: by Plaintiff George Frey.. (Walsworth, Ian) (Entered: 03/13/2013)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 03/13/2013 | <a href="#">79</a> | RESTRICTED DOCUMENT - Level 1: by Plaintiff George Frey.. (Walsworth, Ian) (Entered: 03/13/2013)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 03/13/2013 | 80                 | Deposition by Plaintiff George Frey. (Public entry for restricted document <a href="#">77</a> filed on 03/13/13) Text only entry. (jjhsl, ) (Entered: 03/14/2013)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 03/13/2013 | 81                 | Deposition by Plaintiff George Frey. (Public entry for restricted document <a href="#">78</a> filed on 03/13/13) Text only entry. (jjhsl, ) (Entered: 03/14/2013)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 03/13/2013 | 82                 | Deposition by Plaintiff George Frey. (Public entry for restricted document <a href="#">79</a> filed on 03/13/13) Text only entry. (jjhsl, ) (Entered: 03/14/2013)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 03/14/2013 | <a href="#">83</a> | ORDER granting <a href="#">76</a> Motion for Leave to Restrict Access to Deposition Excerpts by Judge Richard P. Matsch on 03/14/13.(jjhsl, ) (Entered: 03/14/2013)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 03/19/2013 | <a href="#">84</a> | Courtroom Minutes for Motion Hearing held on 3/19/2013 before Judge Richard P. Matsch. ORDERED: Warsaw Orthopedic, Inc. and Medtronic Sofamor Danek Usa, Inc.'s Motion for Partial Summary Judgment on Capstone, <a href="#">44</a> / 46 , is denied. Plaintiff Dr. George Frey, M.D.'s Motion and Incorporated Memorandum of Law in Support of Partial Summary Judgment Regarding Net Sales, <a href="#">37</a> / 40 , is denied. Plaintiff's Motion to Amend Complaint to Incorporate a Claim for Breach of the March 17, 1999 Consulting Agreement with Medtronic Sofmar Danek USA, Inc. <a href="#">58</a> , is denied. Plaintiff has to March 29, 2013 to file an Amended Complaint (clear statement of claims). Defendants shall file an answer in accordance with the rules.FTR: K. Terasaki. (rpmcd) (Entered: 03/20/2013) |
| 03/28/2013 | <a href="#">85</a> | SUPPLEMENTAL COMPLAINT AND JURY DEMAND against Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc., filed by George Frey.(Walsworth, Ian) Modified on 3/29/2013 (rpmcd). (Entered: 03/28/2013)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 04/09/2013 | <a href="#">86</a> | TRANSCRIPT of Motions Hearing held on March 19, 2013 before Judge Matsch. Pages: 1-96. Prepared by: Federal Reporting Service, Inc.<br><br><b>NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at <a href="http://www.cod.uscourts.gov">www.cod.uscourts.gov</a>.</b>                                                                                                                    |

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|            |                     | Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 7/11/2013. (Federal Reporting Service, Inc., ) (Entered: 04/09/2013)                                                                                                                                                                                                                                  |
| 04/15/2013 | <a href="#">87</a>  | ANSWER to <a href="#">85</a> Amended Complaint by Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc..(Dauchot, Luke) (Entered: 04/15/2013)                                                                                                                                                                                                                                                                                                                                                                           |
| 05/17/2013 | <a href="#">88</a>  | Joint MOTION to Amend/Correct/Modify <a href="#">26</a> Scheduling Order by Plaintiff George Frey. (Attachments: # <a href="#">1</a> Proposed Order (PDF Only))(Walsworth, Ian) (Entered: 05/17/2013)                                                                                                                                                                                                                                                                                                                        |
| 05/20/2013 | <a href="#">89</a>  | ORDER Granting <a href="#">88</a> Motion to Amend Revised Scheduling Order <a href="#">26</a> , Fact Discovery due by 6/28/2013 (see Order for deadlines re designation of experts), by Judge Richard P. Matsch on 5/20/2013.(rpmcd) (Entered: 05/20/2013)                                                                                                                                                                                                                                                                   |
| 06/13/2013 | <a href="#">90</a>  | Joint MOTION for Hearing/Conference by Plaintiff George Frey. (Attachments: # <a href="#">1</a> Proposed Order (PDF Only))(Walsworth, Ian) (Entered: 06/13/2013)                                                                                                                                                                                                                                                                                                                                                             |
| 06/26/2013 | <a href="#">91</a>  | ORDER Setting Pretrial Conference for 11/19/2013 at 02:00 PM in Conference Room, Proposed Pretrial Order due by 4:00 p.m. 11/14/2013 in paper form directly to chambers, lead counsel present in person and no parties permitted, by Judge Richard P. Matsch on 6/26/2013. (rpmcd ) (Entered: 06/26/2013)                                                                                                                                                                                                                    |
| 07/25/2013 | <a href="#">92</a>  | MOTION to Amend/Correct/Modify <a href="#">26</a> Scheduling Order by Plaintiff George Frey. (Attachments: # <a href="#">1</a> Proposed Order (PDF Only))(Walsworth, Ian) (Entered: 07/25/2013)                                                                                                                                                                                                                                                                                                                              |
| 07/26/2013 | <a href="#">93</a>  | ORDER Granting <a href="#">92</a> Motion to Amend <a href="#">26</a> Scheduling Order: Expert designation deadlines amended as indicated in Order, by Judge Richard P. Matsch on 7/26/2013. (rpmcd ) (Entered: 07/26/2013)                                                                                                                                                                                                                                                                                                   |
| 09/13/2013 | <a href="#">94</a>  | MOTION for Leave to Restrict Document by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc.. (Attachments: # <a href="#">1</a> Proposed Order (PDF Only)) (Wickramasekera, Nimalka) (Entered: 09/13/2013)                                                                                                                                                                                                                                                                                                 |
| 09/13/2013 | <a href="#">95</a>  | RESTRICTED DOCUMENT - Level 1: by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc... (Attachments: # <a href="#">1</a> Exhibit 1, # <a href="#">2</a> Exhibit 2 (Under Seal), # <a href="#">3</a> Exhibit 3, # <a href="#">4</a> Exhibit 4, # <a href="#">5</a> Exhibit 5 (Under Seal), # <a href="#">6</a> Exhibit 6)(Wickramasekera, Nimalka) (Entered: 09/13/2013)                                                                                                                                   |
| 09/13/2013 | <a href="#">96</a>  | Exhibits in Support of <a href="#">95</a> Restricted Document - Level 1, ( <i>Motion to Compel Expert Depositions and Production of Dr. Frey's Tax Returns</i> ) by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc.. (Attachments: # <a href="#">1</a> Exhibit 1, # <a href="#">2</a> Exhibit 2 (Under Seal), # <a href="#">3</a> Exhibit 3, # <a href="#">4</a> Exhibit 4, # <a href="#">5</a> Exhibit 5 (Under Seal), # <a href="#">6</a> Exhibit 6) (Wickramasekera, Nimalka) (Entered: 09/13/2013) |
| 09/13/2013 | <a href="#">97</a>  | MOTION to Expedite <i>Defendants' Motion to Compel Expert Depositions and Production of Dr. Frey's Tax Returns</i> by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc.. (Wickramasekera, Nimalka) (Entered: 09/13/2013)                                                                                                                                                                                                                                                                                 |
| 09/13/2013 | <a href="#">98</a>  | Defendants' MOTION to Compel Expert Depositions and Production of Dr. Frey's Tax Returns and Exhibits 1-6, by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc. re <a href="#">95</a> Public and Text Only Entry. (rpmcd) (Entered: 09/16/2013)                                                                                                                                                                                                                                                          |
| 09/16/2013 | <a href="#">99</a>  | ORDER Granting <a href="#">94</a> Motion for Leave to Restrict <a href="#">95</a> Restricted Document - Level 1, by Judge Richard P. Matsch on 9/16/2013.(rpmcd) (Entered: 09/16/2013)                                                                                                                                                                                                                                                                                                                                       |
| 09/16/2013 | <a href="#">100</a> | ORDER on Defendants' Motion to Compel <a href="#">99</a> : the deadline for the completion of expert depositions is extended to October 16, 2013, and the plaintiff shall produce their three experts for depositions before that date; the motion to compel the production of Dr. Frey's                                                                                                                                                                                                                                    |



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|            |                     | tax returns is denied on the ground that such discovery is not necessary because the plaintiff's alleged monetary loss due to changes in tax rates is not a proper element of damages; the defendants' motion for expedited briefing <a href="#">97</a> is moot, by Judge Richard P. Matsch on 9/16/2013.(rpmcd) (Entered: 09/17/2013)                                                                                                        |
| 09/17/2013 | <a href="#">101</a> | MOTION for Reconsideration re <a href="#">100</a> Order on Motion to Expedite,,, Order on Motion to Compel,, by Plaintiff George Frey. (Attachments: # <a href="#">1</a> Proposed Document Dr. Frey's Response in Opposition to Defendants' Motion to Compel Depositions and Production of Documents Relating to Dr. Frey's Tax Returns and accompanying Declaration of Ian R. Walsworth with Exhibits)(Walsworth, Ian) (Entered: 09/17/2013) |
| 09/17/2013 | <a href="#">102</a> | BRIEF in Opposition to <a href="#">101</a> MOTION for Reconsideration re <a href="#">100</a> Order on Motion to Expedite,,, Order on Motion to Compel,, filed by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc.. (Attachments: # <a href="#">1</a> Exhibit 1, # <a href="#">2</a> Exhibit 2, # <a href="#">3</a> Exhibit 3)(Wickramasekera, Nimalka) (Entered: 09/17/2013)                                             |
| 09/18/2013 | <a href="#">103</a> | ORDER Denying <a href="#">101</a> Motion for Reconsideration re <a href="#">100</a> Order: Counsel are also ordered to refrain from filing intra-counsel communications with this court, by Judge Richard P. Matsch on 9/18/2013.(rpmcd) (Entered: 09/18/2013)                                                                                                                                                                                |
| 09/30/2013 | <a href="#">104</a> | MOTION to Strike <i>Portions of Defendants' August 26, 2013 Expert Witness Disclosures and Exclude Opinion Testimony Offered by Certain Expert Witnesses</i> by Plaintiff George Frey. (Attachments: # <a href="#">1</a> Exhibit 1, # <a href="#">2</a> Exhibit 2)(Walsworth, Ian) (Entered: 09/30/2013)                                                                                                                                      |
| 09/30/2013 | <a href="#">105</a> | MOTION to Strike <i>Portions of Erik K. Antonsson's Report and Exclude Certain Testimony at Trial</i> by Plaintiff George Frey. (Attachments: # <a href="#">1</a> Proposed Order (PDF Only))(Walsworth, Ian) (Entered: 09/30/2013)                                                                                                                                                                                                            |
| 09/30/2013 | <a href="#">106</a> | MOTION for Leave to Restrict Document by Plaintiff George Frey. (Walsworth, Ian) (Entered: 09/30/2013)                                                                                                                                                                                                                                                                                                                                        |
| 09/30/2013 | <a href="#">107</a> | DECLARATION of <i>Ian R. Walsworth</i> regarding MOTION to Strike <i>Portions of Erik K. Antonsson's Report and Exclude Certain Testimony at Trial</i> <a href="#">105</a> by Plaintiff George Frey. (Walsworth, Ian) (Entered: 09/30/2013)                                                                                                                                                                                                   |
| 09/30/2013 | <a href="#">108</a> | RESTRICTED DOCUMENT - Level 1: by Plaintiff George Frey.. (Attachments: # <a href="#">1</a> Exhibit 1, # <a href="#">2</a> Exhibit 2)(Walsworth, Ian) (Entered: 09/30/2013)                                                                                                                                                                                                                                                                   |
| 09/30/2013 | <a href="#">109</a> | MOTION to Strike <i>Portions of Mark J. Hosfield's Expert Report and Exclude Testimony</i> by Plaintiff George Frey. (Attachments: # <a href="#">1</a> Proposed Order (PDF Only))(Walsworth, Ian) (Entered: 09/30/2013)                                                                                                                                                                                                                       |
| 09/30/2013 | <a href="#">110</a> | MOTION for Leave to Restrict Document by Plaintiff George Frey. (Walsworth, Ian) (Entered: 09/30/2013)                                                                                                                                                                                                                                                                                                                                        |
| 09/30/2013 | <a href="#">111</a> | DECLARATION of <i>Ian R. Walsworth</i> regarding MOTION to Strike <i>Portions of Mark J. Hosfield's Expert Report and Exclude Testimony</i> <a href="#">109</a> by Plaintiff George Frey. (Attachments: # <a href="#">1</a> Exhibit 3)(Walsworth, Ian) (Entered: 09/30/2013)                                                                                                                                                                  |
| 09/30/2013 | <a href="#">112</a> | RESTRICTED DOCUMENT - Level 1: by Plaintiff George Frey.. (Attachments: # <a href="#">1</a> Exhibit 1, # <a href="#">2</a> Exhibit 2, # <a href="#">3</a> Exhibit 4, # <a href="#">4</a> Exhibit 5)(Walsworth, Ian) (Entered: 09/30/2013)                                                                                                                                                                                                     |
| 09/30/2013 | <a href="#">113</a> | MOTION in Limine to <i>Exclude Testimony Relating to Surgical Concepts and Patient Advocacy Coalition</i> by Plaintiff George Frey. (Attachments: # <a href="#">1</a> Proposed Order (PDF Only))(Walsworth, Ian) (Entered: 09/30/2013)                                                                                                                                                                                                        |
| 09/30/2013 | <a href="#">114</a> | MOTION for Leave to Restrict Document by Plaintiff George Frey. (Walsworth, Ian) (Entered: 09/30/2013)                                                                                                                                                                                                                                                                                                                                        |

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| 09/30/2013 | <a href="#">115</a> | DECLARATION of <i>Ian R. Walsworth</i> regarding MOTION in Limine to Exclude Testimony Relating to Surgical Concepts and Patient Advocacy Coalition <a href="#">113</a> by Plaintiff George Frey. (Attachments: # <a href="#">1</a> Exhibit 1)(Walsworth, Ian) (Entered: 09/30/2013)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 09/30/2013 | <a href="#">116</a> | RESTRICTED DOCUMENT - Level 1: by Plaintiff George Frey.. (Attachments: # <a href="#">1</a> Exhibit 2, # <a href="#">2</a> Exhibit 3)(Walsworth, Ian) (Entered: 09/30/2013)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 09/30/2013 | <a href="#">117</a> | RESTRICTED DOCUMENT - Level 1: by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc... (Attachments: # <a href="#">1</a> Exhibit 4, # <a href="#">2</a> Exhibit 7, # <a href="#">3</a> Exhibit 9, # <a href="#">4</a> Exhibit 10, # <a href="#">5</a> Exhibit 11, # <a href="#">6</a> Exhibit 14, # <a href="#">7</a> Exhibit 15, # <a href="#">8</a> Exhibit 16, # <a href="#">9</a> Exhibit 17, # <a href="#">10</a> Exhibit 18, # <a href="#">11</a> Exhibit 19, # <a href="#">12</a> Exhibit 20)(Wickramasekera, Nimalka) (Entered: 09/30/2013)                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 09/30/2013 | <a href="#">118</a> | Exhibits in Support of <a href="#">117</a> Restricted Document - Level 1, by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc.. (Attachments: # <a href="#">1</a> Exhibit 1, # <a href="#">2</a> Exhibit 2, # <a href="#">3</a> Exhibit 3, # <a href="#">4</a> Exhibit 4 (Under Seal), # <a href="#">5</a> Exhibit 5, # <a href="#">6</a> Exhibit 6, # <a href="#">7</a> Exhibit 7 (Under Seal), # <a href="#">8</a> Exhibit 8, # <a href="#">9</a> Exhibit 9 (Under Seal), # <a href="#">10</a> Exhibit 10 (Under Seal), # <a href="#">11</a> Exhibit 11 (Under Seal), # <a href="#">12</a> Exhibit 12, # <a href="#">13</a> Exhibit 13, # <a href="#">14</a> Exhibit 14 (Under Seal), # <a href="#">15</a> Exhibit 15 (Under Seal), # <a href="#">16</a> Exhibit 16 (Under Seal), # <a href="#">17</a> Exhibit 17 (Under Seal), # <a href="#">18</a> Exhibit 18 (Under Seal), # <a href="#">19</a> Exhibit 19 (Under Seal), # <a href="#">20</a> Exhibit 20 (Under Seal))(Wickramasekera, Nimalka) (Entered: 09/30/2013) |
| 09/30/2013 | <a href="#">119</a> | MOTION for Leave to Restrict Document <a href="#">117</a> by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc.. (Attachments: # <a href="#">1</a> Proposed Order (PDF Only)) (Wickramasekera, Nimalka) Modified (linkage} on 10/1/2013 (rpmcd). (Entered: 09/30/2013)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 09/30/2013 | 120                 | Exhibits in Support of <a href="#">109</a> MOTION to Strike Portions of Mark J. Hosfield's Expert Report and Exclude Testimony by Plaintiff George Frey. Public and Text Only Entry re <a href="#">112</a> . (rpmcd ) (Entered: 10/01/2013)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 09/30/2013 | 121                 | Exhibits in Support of <a href="#">105</a> MOTION to Strike Portions of Erik K. Antonsson's Report and Exclude Certain Testimony at Trial, by Plaintiff George Frey. Public and Text Only Entry re <a href="#">108</a> . (rpmcd) Modified {linkage) on 10/1/2013 (rpmcd). (Entered: 10/01/2013)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 09/30/2013 | 122                 | Exhibits in Support of <a href="#">113</a> MOTION in Limine to Exclude Testimony Relating to Surgical Concepts and Patient Advocacy Coalition, by Plaintiff George Frey. Public and Text Only Entry re <a href="#">116</a> . (rpmcd ) (Entered: 10/01/2013)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 09/30/2013 | 123                 | MOTION in Limine re <a href="#">119</a> by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc.. Public and Text Only Entry re <a href="#">117</a> . (rpmcd) (Entered: 10/01/2013)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 10/01/2013 | <a href="#">124</a> | ORDER Granting <a href="#">114</a> Motion for Leave to Restrict <a href="#">116</a> Restricted Document - Level 1 Exhibits 2 and 3, by Judge Richard P. Matsch on 10/1/2013.(rpmcd ) (Entered: 10/01/2013)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 10/01/2013 | <a href="#">125</a> | ORDER Granting <a href="#">110</a> Motion for Leave to Restrict <a href="#">112</a> Restricted Document - Level 1 Exhibits 1, 2, 4 and 5, by Judge Richard P. Matsch on 10/1/2013.(rpmcd) (Entered: 10/01/2013)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 10/01/2013 | <a href="#">126</a> | ORDER Granting <a href="#">106</a> Motion for Leave to Restrict <a href="#">108</a> Restricted Document - Level 1 Exhibits, by Judge Richard P. Matsch on 10/1/2013. (rpmcd) (Entered: 10/01/2013)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 10/01/2013 | <a href="#">127</a> | ORDER Granting <a href="#">119</a> Motion for Leave to Restrict <a href="#">117</a> Restricted Document - Level 1, Exhibits 4, 7, 9-11, 14-20, by Judge Richard P. Matsch on 10/1/2013.(rpmcd) (Entered: 10/01/2013)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 10/21/2013 | <a href="#">128</a> | RESTRICTED DOCUMENT - Level 1: by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc... (Attachments: # <a href="#">1</a> Exhibit 21, # <a href="#">2</a> Exhibit 23, # <a href="#">3</a> Exhibit                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |

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|            |                     | 24)(Wickramasekera, Nimalka) (Entered: 10/21/2013)                                                                                                                                                                                                                                                                                                                                                                                        |
| 10/21/2013 | <a href="#">129</a> | Exhibits in Support of <a href="#">128</a> Restricted Document - Level 1 by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc.. (Attachments: # <a href="#">1</a> Exhibit 21 (Filed Under Seal), # <a href="#">2</a> Exhibit 22, # <a href="#">3</a> Exhibit 23 (Filed Under Seal), # <a href="#">4</a> Exhibit 24 (Filed Under Seal))(Wickramasekera, Nimalka) (Entered: 10/21/2013)                                  |
| 10/21/2013 | <a href="#">130</a> | RESTRICTED DOCUMENT - Level 1: by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc... (Attachments: # <a href="#">1</a> Exhibit 25)(Wickramasekera, Nimalka) (Entered: 10/21/2013)                                                                                                                                                                                                                                    |
| 10/21/2013 | <a href="#">131</a> | RESPONSE to <a href="#">104</a> MOTION to Strike <i>Portions of Defendants' August 26, 2013 Expert Witness Disclosures and Exclude Opinion Testimony Offered by Certain Expert Witnesses</i> filed by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc.. (Attachments: # <a href="#">1</a> Exhibit 26, # <a href="#">2</a> Exhibit 27, # <a href="#">3</a> Exhibit 28)(Wickramasekera, Nimalka) (Entered: 10/21/2013) |
| 10/21/2013 | <a href="#">132</a> | RESTRICTED DOCUMENT - Level 1: by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc... (Attachments: # <a href="#">1</a> Exhibit 29, # <a href="#">2</a> Exhibit 30, # <a href="#">3</a> Exhibit 31, # <a href="#">4</a> Exhibit 32, # <a href="#">5</a> Exhibit 33)(Wickramasekera, Nimalka) (Entered: 10/21/2013)                                                                                                    |
| 10/21/2013 | <a href="#">133</a> | MOTION for Leave to Restrict Document by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc.. (Attachments: # <a href="#">1</a> Proposed Order) (Wickramasekera, Nimalka) (Entered: 10/21/2013)                                                                                                                                                                                                                         |
| 10/21/2013 | 134                 | DEFENDANTS' OPPOSITION to <a href="#">109</a> MOTION to Strike Portions of Mark J. Hosfield's Expert Report and Exclude Testimony, filed by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc.. Public and Text Only Entry re <a href="#">128</a> . (Entered: 10/22/2013)                                                                                                                                              |
| 10/21/2013 | 135                 | DEFENDANTS' OPPOSITION to <a href="#">105</a> MOTION to Strike Portions of Erik K. Antonsson's Report and Exclude Certain Testimony at Trial filed by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc.. Public and Text Only Entry re <a href="#">130</a> . (rpmcd) (Entered: 10/22/2013)                                                                                                                            |
| 10/21/2013 | 136                 | DEFENDANTS' OPPOSITION to <a href="#">113</a> MOTION in Limine to Exclude Testimony Relating to Surgical Concepts and Patient Advocacy Coalition filed by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc.. Public and Text Only Entry re <a href="#">132</a> . (rpmcd ) (Entered: 10/22/2013)                                                                                                                       |
| 10/22/2013 | <a href="#">137</a> | ORDER Granting <a href="#">133</a> Motion for Leave to Restrict Docs. <a href="#">128</a> , <a href="#">130</a> and <a href="#">132</a> to restricted Level 1 access, by Judge Richard P. Matsch on 10/22/2013.(rpmcd) (Entered: 10/22/2013)                                                                                                                                                                                              |
| 10/24/2013 | <a href="#">138</a> | Response in Opposition to 123 MOTION in Limine filed by Plaintiff George Frey. (Walsworth, Ian) Modified (title) on 10/25/2013 (rpmcd). (Entered: 10/24/2013)                                                                                                                                                                                                                                                                             |
| 10/24/2013 | <a href="#">139</a> | DECLARATION of <i>Ian R. Walsworth</i> regarding Brief in Opposition to Motion <a href="#">138</a> by Plaintiff George Frey. (Attachments: # <a href="#">1</a> Exhibit 1, # <a href="#">2</a> Exhibit 2 Part I, # <a href="#">3</a> Exhibit 2 Part II, # <a href="#">4</a> Exhibit 3, # <a href="#">5</a> Exhibit 4, # <a href="#">6</a> Exhibit 5)(Walsworth, Ian) (Entered: 10/24/2013)                                                 |
| 10/24/2013 | <a href="#">140</a> | RESTRICTED DOCUMENT - Level 1: by Plaintiff George Frey.. (Attachments: # <a href="#">1</a> Exhibit 6, # <a href="#">2</a> Exhibit 7, # <a href="#">3</a> Exhibit 8, # <a href="#">4</a> Exhibit 9)(Walsworth, Ian) (Entered: 10/24/2013)                                                                                                                                                                                                 |
| 10/24/2013 | <a href="#">141</a> | MOTION for Leave to Restrict Document by Plaintiff George Frey. (Walsworth, Ian) (Entered: 10/24/2013)                                                                                                                                                                                                                                                                                                                                    |



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| 10/24/2013 | <a href="#">142</a> | Exhibits to <a href="#">139</a> Declaration in Support of <a href="#">138</a> Response in Opposition to 123 Motion. Public and Text Only Entry re <a href="#">140</a> Restricted Document - Level 1, by Plaintiff George Frey. (rpmcd) (Entered: 10/25/2013)                                                                                     |
| 10/25/2013 | <a href="#">143</a> | ORDER Granting <a href="#">141</a> Motion for Leave to Restrict <a href="#">140</a> Restricted Document - Level 1, Exhibits 6, 7, 8, and 9, by Judge Richard P. Matsch on 10/25/2013.(rpmcd ) (Entered: 10/25/2013)                                                                                                                              |
| 11/07/2013 | <a href="#">144</a> | REPLY to Response to <a href="#">104</a> MOTION to Strike <i>Portions of Defendants' August 26, 2013 Expert Witness Disclosures and Exclude Opinion Testimony Offered by Certain Expert Witnesses</i> filed by Plaintiff George Frey. (Walsworth, Ian) (Entered: 11/07/2013)                                                                     |
| 11/07/2013 | <a href="#">145</a> | DECLARATION of <i>Ian R. Walsworth</i> regarding Reply to Response to Motion, <a href="#">144</a> by Plaintiff George Frey. (Walsworth, Ian) (Entered: 11/07/2013)                                                                                                                                                                               |
| 11/07/2013 | <a href="#">146</a> | REPLY to Response to <a href="#">105</a> MOTION to Strike <i>Portions of Erik K. Antonsson's Report and Exclude Certain Testimony at Trial</i> filed by Plaintiff George Frey. (Walsworth, Ian) (Entered: 11/07/2013)                                                                                                                            |
| 11/07/2013 | <a href="#">147</a> | REPLY to Response to <a href="#">109</a> MOTION to Strike <i>Portions of Mark J. Hosfield's Expert Report and Exclude Testimony</i> filed by Plaintiff George Frey. (Walsworth, Ian) (Entered: 11/07/2013)                                                                                                                                       |
| 11/07/2013 | <a href="#">148</a> | DECLARATION of <i>Ian R. Walsworth</i> regarding Reply to Response to Motion <a href="#">147</a> by Plaintiff George Frey. (Attachments: # <a href="#">1</a> Exhibit 1)(Walsworth, Ian) (Entered: 11/07/2013)                                                                                                                                    |
| 11/07/2013 | <a href="#">149</a> | MOTION for Leave to Restrict Document by Plaintiff George Frey. (Walsworth, Ian) (Entered: 11/07/2013)                                                                                                                                                                                                                                           |
| 11/07/2013 | <a href="#">150</a> | RESTRICTED DOCUMENT - Level 1: by Plaintiff George Frey.. (Attachments: # <a href="#">1</a> Exhibit 2)(Walsworth, Ian) (Entered: 11/07/2013)                                                                                                                                                                                                     |
| 11/07/2013 | <a href="#">151</a> | REPLY to Response to <a href="#">113</a> MOTION in Limine <i>to Exclude Testimony Relating to Surgical Concepts and Patient Advocacy Coalition</i> filed by Plaintiff George Frey. (Walsworth, Ian) (Entered: 11/07/2013)                                                                                                                        |
| 11/07/2013 | 152                 | Exhibits in Support <a href="#">148</a> Declaration re <a href="#">147</a> Reply to <a href="#">128</a> / 134 Response to <a href="#">109</a> Motion to Strike Portions of Mark J. Hosfield's Expert Report and Exclude Testimony, by Plaintiff George Frey. (Public and Text Only Entry re <a href="#">150</a> ). (rpmcd) (Entered: 11/08/2013) |
| 11/08/2013 | <a href="#">153</a> | ORDER TO RESTRICT PUBLIC ACCESS <a href="#">150</a> Exhibit 2 restricted to Level 1 re <a href="#">149</a> , by Judge Richard P. Matsch on 11/8/2013.(rpmcd) (Entered: 11/08/2013)                                                                                                                                                               |
| 11/12/2013 | <a href="#">154</a> | RESTRICTED DOCUMENT - Level 1: by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc... Motions due by 11/29/2013. (Attachments: # <a href="#">1</a> Exhibit 34, # <a href="#">2</a> Exhibit 35)(Wickramasekera, Nimalka) (Entered: 11/12/2013)                                                                                |
| 11/12/2013 | <a href="#">155</a> | MOTION for Leave to Restrict Document by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc.. (Attachments: # <a href="#">1</a> Proposed Order (PDF Only)) (Wickramasekera, Nimalka) (Entered: 11/12/2013)                                                                                                                     |
| 11/12/2013 | 156                 | REPLY to Response to 123 MOTION in Limine filed by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc..(Public Entry for RESTRICTED Document <a href="#">154</a> , filed 11/12/2013) TEXT ONLY ENTRY (ervsl, ) (Entered: 11/13/2013)                                                                                           |
| 11/13/2013 | <a href="#">157</a> | ORDER granting <a href="#">155</a> Defendants Motion for Leave to Restrict by Judge Richard P. Matsch on 11/13/2013.(ervsl, ) (Entered: 11/13/2013)                                                                                                                                                                                              |

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| 11/19/2013 | <a href="#">158</a> | NOTICE of Entry of Appearance by Hiwot Molla Covell on behalf of George Frey (Covell, Hiwot) (Entered: 11/19/2013)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 11/19/2013 | <a href="#">159</a> | NOTICE of Entry of Appearance by David Benjamin Kellis on behalf of George Frey (Kellis, David) (Entered: 11/19/2013)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 11/19/2013 | <a href="#">160</a> | ORDER Setting Jury Trial for 5/5/2014 at 08:30 AM in Courtroom A, by Judge Richard P. Matsch on 11/19/2013. (rpmcd) (Entered: 11/19/2013)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 11/19/2013 | <a href="#">161</a> | Courtroom Minutes for Pretrial Conference held on 11/19/2013 before Judge Richard P. Matsch. ORDERED: Motion to Strike Portions of Defendants' August 26, 2013 Expert Witness Disclosures and Exclude Opinion Testimony Offered by Certain Expert Witnesses <a href="#">104</a> , is denied. Motion to Strike Portions of Erik K. Antonsson's Report And Exclude Certain Testimony at Trial <a href="#">105</a> , is denied. Motion to Strike Portions of Mark J. Hosfield's Expert Report And Exclude Testimony <a href="#">109</a> , is resolved by plaintiff being permitted to conduct additional discovery and allowing Mr. Pedigo to provide a rebuttal report as stated on record. Motion in Limine to Exclude Testimony Relating to Surgical Concepts and Patient Advocacy Coalition <a href="#">113</a> , is granted. Defendants Warsaw Orthopedic, Inc. and Medtronic Sofamor Danek Usa, Inc.'s Motions in Limine 123 / <a href="#">117</a> , No.1: Dr. Chewning permitted to describe surgical method but not patent claims; No. 2: granted; and No. 3 resolved by Court's ruling on motion <a href="#">109</a> . Two week jury trial set May 5, 2014. FTR: K. Terasaki. (rpmcd ) (Entered: 11/19/2013) |
| 11/19/2013 | <a href="#">162</a> | Final PRETRIAL ORDER, by Judge Richard P. Matsch on 11/19/2013. (Attachments: # <a href="#">1</a> Appendix A - Plaintiff's Exhibit List, # <a href="#">2</a> Appendix B - Defendants' Exhibit List) (rpmcd) (Entered: 11/20/2013)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 03/18/2014 | <a href="#">163</a> | MINUTE ORDER Setting Trial Preparation Conference for 4/15/2014 at 02:00 PM in Conference Room, by Judge Richard P. Matsch on 3/18/2014. (rpmcd) (Entered: 03/18/2014)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 04/09/2014 | <a href="#">164</a> | MINUTE ORDER re <a href="#">160</a> and <a href="#">163</a> : the May 5, 2014, trial date and the April 15, 2014, trial preparation conference are vacated. Counsel shall contact chambers to reschedule the proceedings, by Judge Richard P. Matsch on 4/9/2014. (jsmit) (Entered: 04/09/2014)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 04/10/2014 | <a href="#">165</a> | ORDER re <a href="#">160</a> and <a href="#">163</a> : the trial date of May 5, 2014 is vacated as is the trial preparation conference set for April 15, 2014. New dates will be scheduled in consultation with counsel, by Judge Richard P. Matsch on 4/10/2014. (jsmit) (Entered: 04/10/2014)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 04/30/2014 | <a href="#">166</a> | ORDER re <a href="#">165</a> : Resetting Jury Trial for 8/4/2014 at 08:30 AM in Courtroom A and Trial Preparation Conference for 7/3/2014 at 10:00 AM in Conference Room, by Judge Richard P. Matsch on 4/30/2014. (jsmit) (Main Document 166 replaced and modified with Amended Order to correct signature date on 4/30/2014 pursuant FRCP 60(a), NEF regenerated) (jsmit). (Entered: 04/30/2014)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 05/08/2014 | <a href="#">167</a> | NOTICE of Entry of Appearance by Kevin Douglas Bendix on behalf of Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc. Attorney Kevin Douglas Bendix added to party Medtronic Sofamor Danek USA, Inc.(pty:dft), Attorney Kevin Douglas Bendix added to party Warsaw Orthopedic, Inc.(pty:dft) (Bendix, Kevin) (Entered: 05/08/2014)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 05/09/2014 | <a href="#">168</a> | NOTICE of Entry of Appearance by Benjamin A. Yaghoubian on behalf of Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc. Attorney Benjamin A. Yaghoubian added to party Medtronic Sofamor Danek USA, Inc.(pty:dft), Attorney Benjamin A. Yaghoubian added to party Warsaw Orthopedic, Inc.(pty:dft) (Yaghoubian, Benjamin) (Entered: 05/09/2014)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |

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| 05/21/2014 | <a href="#">169</a> | NOTICE of Entry of Appearance by Sharre Sara Lotfollahi on behalf of Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc. Attorney Sharre Sara Lotfollahi added to party Medtronic Sofamor Danek USA, Inc.(pty:dft), Attorney Sharre Sara Lotfollahi added to party Warsaw Orthopedic, Inc.(pty:dft) (Lotfollahi, Sharre) (Entered: 05/21/2014)                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 05/21/2014 | <a href="#">170</a> | NOTICE of Entry of Appearance by Justin Singh on behalf of Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc. Attorney Justin Singh added to party Medtronic Sofamor Danek USA, Inc.(pty:dft), Attorney Justin Singh added to party Warsaw Orthopedic, Inc.(pty:dft) (Singh, Justin) (Entered: 05/21/2014)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 06/24/2014 | <a href="#">171</a> | Joint MOTION to Reset <i>Trial Preparation Conference</i> by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc.. (Attachments: # <a href="#">1</a> Proposed Order (PDF Only))(Farley, Conor) (Entered: 06/24/2014)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 06/24/2014 | <a href="#">172</a> | Minute ORDER Granting <a href="#">171</a> Motion to Reset Trial Preparation Conference for 7/1/2014 at 03:00 PM in Conference Room, by Judge Richard P. Matsch on 6/24/2014.(jsmit) (Entered: 06/24/2014)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 07/01/2014 | <a href="#">173</a> | Courtroom Minutes for Trial Preparation Conference held on 7/1/2014 before Judge Richard P. Matsch. ORDERED: Plaintiff's under-pay claim withdrawn. Transcript(s) of video depositions submitted to courts chambers by July 28, 2014. Witnesses sequestered. Briefing on the all related issues concerning the statute of limitations shall be completed and filed by July 28, 2014. Proposed voir dire, proposed jury instructions, combined list of witnesses, and proposed statement of the case due July 28, 2014. FTR: B. Abiakam. (jsmit) (Entered: 07/02/2014)                                                                                                                                                                                                                                               |
| 07/11/2014 | <a href="#">174</a> | TRIAL BRIEF <i>re Statute of Limitations</i> by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc.. (Dauchot, Luke) (Entered: 07/11/2014)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 07/23/2014 | <a href="#">175</a> | RESPONSE to <a href="#">174</a> Trial Brief <i>Regarding Contractual Choice of Law Provisions</i> by Plaintiff George Frey. (Walsworth, Ian) (Entered: 07/23/2014)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 07/23/2014 | <a href="#">176</a> | MOTION for Leave to Restrict by Plaintiff George Frey. (Walsworth, Ian) (Entered: 07/23/2014)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 07/23/2014 | <a href="#">177</a> | DECLARATION of <i>Ian R. Walsworth</i> regarding Response <a href="#">175</a> by Plaintiff George Frey. (Attachments: # <a href="#">1</a> Exhibit 13)(Walsworth, Ian) (Entered: 07/23/2014)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 07/23/2014 | <a href="#">178</a> | RESTRICTED DOCUMENT - Level 1: by Plaintiff George Frey.. (Attachments: # <a href="#">1</a> Exhibit 1 to Walsworth Declaration, # <a href="#">2</a> Exhibit 2 to Walsworth Declaration, # <a href="#">3</a> Exhibit 3 to Walsworth Declaration, # <a href="#">4</a> Exhibit 4 to Walsworth Declaration, # <a href="#">5</a> Exhibit 5 to Walsworth Declaration, # <a href="#">6</a> Exhibit 6 to Walsworth Declaration, # <a href="#">7</a> Exhibit 7 to Walsworth Declaration, # <a href="#">8</a> Exhibit 8 to Walsworth Declaration, # <a href="#">9</a> Exhibit 9 to Walsworth Declaration, # <a href="#">10</a> Exhibit 10 to Walsworth Declaration, # <a href="#">11</a> Exhibit 11 to Walsworth Declaration, # <a href="#">12</a> Exhibit 12 to Walsworth Declaration)(Walsworth, Ian) (Entered: 07/23/2014) |
| 07/23/2014 | 179                 | Exhibits in Support of <a href="#">177</a> Declaration and <a href="#">175</a> Response to <a href="#">174</a> by Plaintiff George Frey. Public and Text Only Entry re <a href="#">178</a> . (jsmit) (Entered: 07/24/2014)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 07/24/2014 | <a href="#">180</a> | ORDER Granting <a href="#">176</a> Motion for Leave to Restrict <a href="#">178</a> Exhibits Restricted Document - Level 1, by Judge Richard P. Matsch on 7/24/2014.(jsmit) (Entered: 07/24/2014)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 07/28/2014 | <a href="#">181</a> | TRIAL BRIEF ( <i>REPLY BRIEF REGARDING THE STATUTE OF LIMITATIONS</i> ) by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc.. (Attachments: # <a href="#">1</a> Affidavit of Sharre Lotfollahi, # <a href="#">2</a> Exhibit 1, # <a href="#">3</a> Exhibit 2, # <a href="#">4</a> Exhibit 3, # <a href="#">5</a> Exhibit 4, # <a href="#">6</a> Exhibit 5, # <a href="#">7</a> Exhibit 6)(Lotfollahi, Sharre) (Entered: 07/29/2014)                                                                                                                                                                                                                                                                                                                                                             |

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| 07/30/2014 | <a href="#">182</a> | ORDER ON CHOICE OF LAW STATUTE OF LIMITATIONS re <a href="#">174</a> , <a href="#">181</a> , and <a href="#">175</a> : plaintiff's claims under the Boomerang Agreement are subject to the 6-year statute of limitations under Tennessee law, and the plaintiff's claims under the Pyramesh Agreement are subject to the 6-year statute of limitations under Indiana law, by Judge Richard P. Matsch on 7/30/2014. (jsmit) (Entered: 07/30/2014)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 08/01/2014 | <a href="#">183</a> | RULING ON DEPOSITION OBJECTIONS, by Judge Richard P. Matsch on 8/1/2014. (jsmit) (Entered: 08/01/2014)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 08/04/2014 | <a href="#">185</a> | Courtroom Minutes for Jury Trial Day One held on 8/4/2014 before Judge Richard P. Matsch. (Attachments: # <a href="#">1</a> Combined Witness List, # <a href="#">2</a> Redacted Strike Sheet) FTR: K. Terasaki. (jsmit) (Entered: 08/05/2014)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 08/05/2014 | <a href="#">184</a> | Partial TRANSCRIPT of Trial To Jury - Day 1 held on August 4, 2014 before Judge Matsch. Pages: 1-143. Prepared by: Federal Reporting Service, Inc.<br><b>NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at <a href="http://www.cod.uscourts.gov">www.cod.uscourts.gov</a>.</b><br>Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 11/6/2014. (Federal Reporting Service, Inc., ) (Entered: 08/05/2014) |
| 08/05/2014 | <a href="#">187</a> | Courtroom Minutes for Jury Trial Day Two held on 8/5/2014 before Judge Richard P. Matsch. FTR: K. Terasaki. (jsmit) (Entered: 08/06/2014)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 08/06/2014 | <a href="#">186</a> | TRANSCRIPT of Trial To Jury - Day 2 held on August 5, 2014 before Judge Matsch. Pages: 144-378. Prepared by: Federal Reporting Service, Inc.<br><b>NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at <a href="http://www.cod.uscourts.gov">www.cod.uscourts.gov</a>.</b><br>Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 11/7/2014. (Federal Reporting Service, Inc., ) (Entered: 08/06/2014)       |
| 08/06/2014 | <a href="#">189</a> | Courtroom Minutes for Jury Trial held on 8/6/2014 before Judge Richard P. Matsch. FTR: K. Terasaki. (jsmit) (Entered: 08/07/2014)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 08/07/2014 | <a href="#">188</a> | TRANSCRIPT of Trial To Jury - Day 3 held on August 6, 2014 before Judge Matsch. Pages: 379-619. Prepared by: Federal Reporting Service, Inc.<br><b>NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at <a href="http://www.cod.uscourts.gov">www.cod.uscourts.gov</a>.</b><br>Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER.                                                                                                                      |



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|            |                     | Release of Transcript Restriction set for 11/10/2014. (Federal Reporting Service, Inc., ) (Entered: 08/07/2014)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 08/07/2014 | <a href="#">191</a> | Courtroom Minutes for Jury Trial Day Four held on 8/7/2014 before Judge Richard P. Matsch. (Attachments: # <a href="#">1</a> List of Stipulated Exhibits)FTR: K. Terasaki. (jsmit) (Entered: 08/08/2014)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 08/08/2014 | <a href="#">190</a> | TRANSCRIPT of Trial To Jury - Day 4 held on August 7, 2014 before Judge Matsch. Pages: 620-821. Prepared by: Federal Reporting Service, Inc.<br><b>NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov.</b> Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 11/10/2014. (Federal Reporting Service, Inc., ) (Entered: 08/08/2014)  |
| 08/08/2014 | <a href="#">192</a> | Courtroom Minutes for Jury Trial Day Five held on 8/8/2014 before Judge Richard P. Matsch. ORDERED: Defendants' may file a written Rule 50 motion.Plaintiff to submit detailed proposed jury instructions clarifying his claims as it relates specifically to the evidence presented at trial. FTR: K. Terasaki. (jsmit) (Entered: 08/08/2014)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 08/09/2014 | <a href="#">193</a> | TRANSCRIPT of Trial To Jury - Day 5 held on August 8, 2014 before Judge Matsch. Pages: 822-1029. Prepared by: Federal Reporting Service, Inc.<br><b>NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov.</b> Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 11/10/2014. (Federal Reporting Service, Inc., ) (Entered: 08/09/2014) |
| 08/10/2014 | <a href="#">194</a> | STIPULATION of Dismissal of Case by Defendants Medtronic Sofamor Danek USA, Inc., Warsaw Orthopedic, Inc.. (Attachments: # <a href="#">1</a> Proposed Order (PDF Only))(Dauchot, Luke) (Entered: 08/10/2014)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 08/11/2014 | <a href="#">195</a> | Courtroom Minutes for Jury Trial Day Six completed on 8/11/2014 before Judge Richard P. Matsch. ORDERED: Jury costs imposed in the amount of \$4,950.76 to be paid equally between plaintiff and defendants payable to the Clerk of the Court. Order Dismissing Case with Prejudice signed. Stipulation and Order Regarding Custody of Exhibits and Depositions signed. FTR: K. Terasaki. (jsmit) (Entered: 08/11/2014)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 08/11/2014 | <a href="#">196</a> | Stipulation and Order Regarding Custody of Exhibits and Depositions, by Judge Richard P. Matsch on 8/11/2014. (jsmit) (Entered: 08/11/2014)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 08/11/2014 | <a href="#">197</a> | ORDER DISMISSING CASE With Prejudice each party shall bear its own litigation costs, attorneys' fees, and any other expenses arising from or related to this litigation, by Judge Richard P. Matsch on 8/11/2014. (jsmit) (Entered: 08/11/2014)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 08/19/2014 | <a href="#">198</a> | TRANSCRIPT of Trial To Jury - Day 6 held on August 11, 2014 before Judge Matsch. Pages: 1030-1039. Prepared by: Federal Reporting Service, Inc.<br><b>NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |



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|            |                     | <p><b>filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at <a href="http://www.cod.uscourts.gov">www.cod.uscourts.gov</a>.</b></p> <p>Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 11/20/2014. (Federal Reporting Service, Inc., ) (Entered: 08/19/2014)</p> |
| 09/02/2014 | <a href="#">199</a> | PAYMENT RECEIVED from Kirkland & Ellis, LLP in the amount of \$ 2475.28; Receipt Number 64471; (dkals, ) (Entered: 09/02/2014)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 09/02/2014 | <a href="#">200</a> | PAYMENT RECEIVED from Sheridan Ross, P.C. in the amount of \$ 2475.38; Receipt Number 64445; (dkals, ) (Entered: 09/02/2014)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |

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| <b>Billable Pages:</b> | 18            | <b>Cost:</b>            | 1.80               |
| <b>Exempt flag:</b>    | Exempt        | <b>Exempt reason:</b>   | Exempt Court Order |